

PANEL 1/12 - CONCEPT AND ORIGIN

Panchayati Raj = elected rural local self-government, not a State field office.

Article 40 supplied the Directive Principle; CDP 1952 and NES 1953 exposed the participation gap.

Core verdict: constitutional form is nationally protected; operational devolution depends heavily on State law.

PANEL 2/12 - EVOLUTION TO CONSTITUTIONAL STATUS

1957 Balwant Rai Mehta: democratic decentralisation and three tiers.

1977-78 Ashok Mehta: district-centred two-tier alternative, parties, tax power, social audit.

1985 G.V.K. Rao: reverse bureaucratisation; district body pivotal for development.

1986 L.M. Singhvi: constitutional status, Gram Sabha, Nyaya Panchayats.

1989 failed 64th Bill -> 1992 Seventy-third Amendment -> force on 24 April 1993.

PANEL 3/12 - PART IX SPINE

243 definitions; 243A Gram Sabha; 243B tiers; 243C composition; 243D reservation.

243E duration; 243F disqualification; 243G powers; 243H finance; 243I SFC.

243J audit; 243K SEC; 243L UTs; 243M exclusions; 243N transition; 243O election bar.

Eleventh Schedule lists 29 matters; listing is not automatic transfer.

PANEL 4/12 - GRAM SABHA, TIERS, AND ELECTION

Gram Sabha = all registered voters in the village area; powers come from State law or PESA.

Default: village -> intermediate -> district; State population $\leq$ 20 lakh may omit intermediate only.

All territorial seats are directly elected; upper-tier chairpersons are elected by/from elected members.

Village-chair method, legislator representation, names, and detailed composition vary under State law.

PANEL 5/12 - INCLUSION AND CONTINUITY

SC/ST seats: population-proportionate; women: not less than one-third seats, including SC/ST women.

At least one-third chairperson offices for women; backward-class reservation is a State option.

Five-year term; poll before expiry or within six months of dissolution.

If remainder < six months, no short-term poll is required; reconstituted body serves only the balance.

Candidate-age protection: 21, not 25.

PANEL 6/12 - POWERS AND THE THREE FS

Article 243G lets State law endow planning and scheme powers for economic development and social justice.

Functions = clear activity map; Functionaries = usable staff control; Funds = predictable and discretionary money.

Functionality test: can the Panchayat decide, direct, spend, deliver, and answer publicly?

Constitutional status or a transfer notification alone does not prove self-government.

PANEL 7/12 - FINANCE, SFC, AND AUDIT

Article 243H: State-authorized taxes, duties, tolls, fees, assigned revenue, grants, and Panchayat Funds.

Own-source revenue excludes grants; exact levies and borrowing powers are State-specific.

Article 243I: SFC every five years; report and action explanation laid before State legislature.

Article 280(3)(bb): Union FC augments State funds for Panchayats on the basis of SFC recommendations.

Article 243J audit + social audit: financial regularity and community outcome verification are distinct.

PANEL 8/12 - PESA AND COMMUNITY GOVERNANCE

Article 243M excludes Scheduled Areas from ordinary Part IX; PESA 1996 extends it to Fifth Schedule areas.

PESA village follows habitation/hamlet/community logic and customary boundaries.

Gram Sabha safeguards custom, cultural identity, community resources, and customary dispute resolution.

Keep verbs exact: approval, consultation, recommendation, and prior recommendation are not synonyms.

PESA covers Fifth Schedule areas, not Sixth Schedule areas or every tribal-majority district.

PANEL 9/12 - PLANNING, ACCOUNTABILITY, AND DIGITAL TOOLS

Gram Sabha priorities -> GPDP -> tier convergence -> Article 243ZD District Planning Committee.

eGramSwaraj supports planning/accounts; AuditOnline supports audit workflow; SVAMITVA supports rural survey/property cards.

RGSA supports capacity; portals do not create legal authority, consent, data quality, or service outcomes.

Women must be assessed through access -> agency -> outcome; proxy control is a risk, not a stereotype.

PANEL 10/12 - ELECTION AND RESERVATION CASES

Kishansing Tomar (2006): constitutional local-election calendar must be honoured.

K. Krishna Murthy (2010): local political reservation needs distinct constitutional and empirical analysis.

Vikas Kishanrao Gawali (2021): dedicated commission, contemporaneous inquiry, body-wise quota, aggregate ceiling.

Rahul Ramesh Wagh orders (2022): no OBC-reserved seats before triple-test compliance; use open category until lawful reservation.

Suresh Mahajan (10 May 2022): unfinished compliance cannot indefinitely postpone constitutionally due elections.

State of Goa v Fouziya Imtiaz Shaikh (2021): SEC must be independent of the State executive.

PANEL 11/12 - ELECTION DISPUTES AND SOURCE DISCIPLINE

Article 2430 limits ordinary challenges to delimitation/seat allotment and routes results through election petitions.

It does not abolish statutory remedies or every bounded constitutional-review question.

Separate Constitution -> central statute -> State Act/rule -> notification -> local practice.

Never universalise nomenclature, chairperson method, quota enhancement, taxes, committee tenure, or devolution.

PANEL 12/12 - REFORM, TRAPS, AND ANSWER SPINE

Reform: activity maps -> accountable staff -> untied finance + fair own revenue -> timely SFC/independent SEC.

Then strengthen Gram Sabha, social audit, PESA compliance, district planning, and assisted digital access.

Traps: 1992 vs 24 April 1993; 29 vs 18; SEC vs ECI; Fifth vs Sixth Schedule; one-third floor vs State enhancement.

Answer spine: define -> constitutional rule -> mechanism -> named evidence/case -> gap -> qualification -> verdict.

Qualified verdict: representation becomes self-government only when authority, staff, money, and citizen scrutiny converge.